

relied upon in several cases (*b*), and has been repeatedly recognised by the highest authorities (*c*). At the same time, it must be noticed that the prior advancement of the child has always been accompanied with some additional circumstance that tended to strengthen the presumption that no further provision was designed (*d*); and Lord Loughborough laid down the general rule to be, that a purchase made by a father in the name of a son, already fully advanced and established by him, not *was*, but *might* be, a trust for the father (*e*).

Whether child considered as provided for when adult. — It is said by Lord Chief Baron Gilbert, that “if a father purchase in the name of a son *who is full of age, which by our law is an emancipation out of the power of the father*, there if the father take the profits, &c., the son is a trustee for the father” (*f*). But for this opinion there appears to be not the slightest ground (*g*). The provision must exist not by a fiction of law, but *bonâ fide* and substantially; “as,” said Lord Nottingham, “if the son be married in his father’s lifetime, and with his father’s consent, and a settlement be thereupon made, whereby the son appears to be fully advanced, and in a manner emancipated” (*h*).

Previous provision in part. — **Reversionary estate not a provision.** — A provision in part will not have the effect of rebutting the presumption of advancement (*i*); and the settlement of a reversionary estate upon the son will not be deemed a provision, for he might starve before it fell into possession (*j*).

6. Case of father holding the possession, and child an infant. — **Son signing receipts for rents in father’s name.** — Suppose the father continues, after the purchase, in the perception of the

(*b*) Elliot v. Elliot, 2 Ch. Ca. 231; Pole v. Pole, 1 Ves. 76.

(*c*) See Grey v. Grey, 2 Sw. 600; S. C. Finch, 341; Lloyd v. Read, 1 P. W. 608; Redington v. Redington, 3 Ridg. 190; Gilb. Lex. Præt. 271.

(*d*) Pole v. Pole, Elliot v. Elliot, *ubi supra*; and see Grey v. Grey, 2 Sw. 600; Gilb. Lex. Præt. 271.

(*e*) Redington v. Redington, 3

Ridg. 190; and see Sidmouth v. Sidmouth, 2 Beav. 456.

(*f*) Lex. Præt. 271.

(*g*) In Grey v. Grey (*ubi supra*) for instance, the son was of age.

(*h*) Grey v. Grey, 2 Sw. 600.

(*i*) *Ib.*; Redington v. Redington, 3 Ridg. 190.

(*j*) Lamplugh v. Lamplugh, 1 P. W. 111.